MEMORANDUM OF UNDERSTANDING
Between the
United States Postal Service
and the
American Postal Workers Union, APWU, AFL-CIO

Re: Alternative Dispute Resolution Procedure (ADRP) Guidelines

Pursuant to the MOU Re: ADRP, the parties have agreed to the following guidelines that are intended to ensure an efficient and effective procedure:

1. The ADRP is limited to the seven (7) issues identified in the MOU, unless the national parties mutually agree to include additional issues.

2. The local union president or designee may initiate a dispute in the form of a class action grievance appealed directly to Step 2 of the grievance procedure, as set forth in the MOU.

3. The time limit for grievance appeals and meetings at each Step is governed by the terms of Article 15, with a clarification in NTFT Roll-out disputes.

4. The 14 day time limit for appeals of NTFT Roll-out disputes starts on the date the NTFT duty assignment is posted for bid.

5. The local union president will advise the installation head in advance of the Step 2 meeting whether the president or another specified designee will serve as the union's representative.

6. The installation head will advise the local president in advance of the Step 2 meeting whether the installation head or another specified designee, including a district designee will serve as management's representative.

7. The Step 2 meeting will be held at a mutually agreeable time to discuss the pending ADRP dispute(s) and will be conducted in accordance with the terms of Article 15.

8. At the Step 2 meeting, the parties will seek to determine whether the issue is a fact based contractual application dispute or an interpretive dispute.

9. If the parties are unable to reach a resolution of the issue, the union may appeal the dispute to Step 3.

10. GATS input procedures will include entering the keyword "ADRP" and the input of only one issue code, selected from one of the seven (7) listed uniquely coded ADRP issues.

11. The union will use the standard grievance forms at each Step of the procedure.

12. Union appeals to Step 3 shall be addressed to the National Service Center at USPS Headquarters in Washington, DC, noting the ADRP issue in dispute and include the standard Step 3 appeal form, a copy of the annotated Step 2 appeal form and any relevant documents, written position statements, decision letter, additions and corrections, etc.

13. Each party at Step 2 will forward a complete file respectively to their party's representative at Step 3 (appropriate National Business Agent and Area Labor Relations Specialist).

14. The Area Manager, Labor Relations will designate to the union and the districts the specific LRS's assigned to handle ADRP disputes at Step 3.

15. At the Step 3 meeting, the parties will seek to reach agreement on whether the issue is a fact based contractual application dispute or an interpretive dispute.

16. If the parties are unable to reach a resolution of the issue, the union may appeal the dispute to the national level.

17. If the grievance is unresolved at the national level, the union may certify the dispute for arbitration at the national or regional level, as appropriate.

Michael R. Makar
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United States Postal Service

Mike Morris
Director, Industrial Relations
American Postal Workers Union, AFL-CIO

Date: October 5, 2011